

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 26, 2026
8:30 a.m.

1. AARON LAUFER V. CHRISTINA YORKEY

25FL0631

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 16, 2026, to modify child custody and visitation, as well as child support, retroactive to the date of filing. Proof of service filed July 21, 2026, shows the RFO and Income and Expense Declaration (I&E) were served upon Respondent via mail that same day.

On July 31, 2026, Respondent filed a Responsive Declaration and current I&E, copies of which were served upon Petitioner via mail that same day per the proof of service, also filed July 31, 2026.

It appears that the court inadvertently failed to refer the parties to CCRC upon the filing of the RFO. The court hereby orders the parties to participate in CCRC on Thursday, September 24, 2026, at 9:00 a.m. and sets the matter for review on Wednesday, November 11, 2026, at 8:30 a.m. in Department 12 of the court. The court will issue a new Tentative Ruling by 2:00 p.m. the day prior to the new hearing date. Any supplemental declarations in response to the CCRC report must be served and filed at least 10 days prior to the new hearing date. The parties are directed to submit the required CCRC questionnaire (Local Form F-17a, which can be downloaded from the court's website or obtained from the Clerk's Office) at least five days prior to the CCRC session.

The court will defer the issue of child support to the continued hearing date. The court reserves jurisdiction to order child support retroactive to the date the RFO was filed.

TENTATIVE RULING #1: THE COURT HEREBY ORDERS THE PARTIES TO PARTICIPATE IN CCRC ON THURSDAY, SEPTEMBER 24, 2026, AT 9:00 A.M. AND SETS THE MATTER FOR REVIEW ON WEDNESDAY, NOVEMBER 11, 2026, AT 8:30 A.M. IN DEPARTMENT 12 OF THE COURT. ANY SUPPLEMENTAL DECLARATIONS IN RESPONSE TO THE CCRC REPORT MUST BE SERVED AND FILED AT LEAST 10 DAYS PRIOR TO THE NEW HEARING DATE. THE PARTIES ARE DIRECTED TO SUBMIT THE REQUIRED CCRC QUESTIONNAIRE (LOCAL FORM F-17A, WHICH CAN BE DOWNLOADED FROM THE COURT'S WEBSITE OR OBTAINED FROM THE CLERK'S OFFICE) AT LEAST FIVE DAYS PRIOR TO THE CCRC SESSION.

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2. DUSTIN NUNNERY V. SUZANA NUNNERY

25FL0486

This matter is on calendar for hearing of the Request for Order (RFO) filed by the Respondent on May 29, 2026, to award guideline child support and spousal support. The hearing was originally set for July 15, 2026. On that date, the court granted Respondent's unopposed request for a continuance. The court ordered the parties to file any supplemental declarations no later than August 19, 2026.

On August 13, 2026, Respondent filed a Reply Declaration and current Income and Expense Declaration (I&E), copies of which were electronically served upon Petitioner that same day per the proof of service, also filed August 13, 2026.

On August 19, 2026, Petitioner filed a Supplemental Declaration, a copy of which was electronically served upon Respondent that same day per the proof of service, also filed August 19, 2026.

The court finds Petitioner's current gross monthly income to be \$14,046.00 (rounded down from \$14,046.34 to the nearest dollar amount). Petitioner's paystub attached to his supplemental declaration filed August 19, 2026, shows a year-to-date (through June 30, 2026) total gross pay of \$84,278.04. (Petitioner's Supp. Decl., filed Aug. 19, 2026, Ex. C.) This amount reflects the amount of money Petitioner has earned through regular pay, workers compensation, and disability benefits. (See, Resp. Decl., ¶ 8.) Based on Petitioner's declaration, the court does not attribute any rental income to him.

The court finds Respondent's current gross monthly income to be \$8,177.00 (rounded down from \$8,177.21 to the nearest dollar amount). Respondent's paystubs attached to her I&E filed August 13, 2026, show a year-to-date (through July 31, 2026) gross total pay of \$16,354.41. Respondent declares she was off work until June 01, 2026. She worked limited hours during June and July 2026. Thus, the court divides the year-to-date total of \$16,354.41 by 2 (representing the two months, June and July 2026, that Respondent worked), which equals \$8,177.21. The court credits Respondent \$600.00 a month for necessary business expenses related to overnight travel, as identified in her I&E filed August 13, 2026. Respondent's I&E also indicates she has been off work again since July 29, 2026, and has a potential return date of August 31, 2026. However, the court does not incorporate this most recent time off of work into its calculation for two reasons. First, the doctor's note attached to Respondent's supplemental declaration filed August 13, 2026, indicates that Respondent's return-to-work date (without limitations) is a mutual decision to be made by the doctor and Respondent, as opposed to the doctor alone. Respondent's next follow up appointment with the doctor is September 11, 2026. Second, Respondent was able to travel internationally with the parties' child during the period of time where Respondent claims to be unable to fully work.

For purposes of calculating child support, the court finds that Petitioner's custody timeshare is 70 percent and Petitioner's custody timeshare is 30 percent, reflecting the current timeshares ordered by the court. Respondent claims that Petitioner is not exercising his full timeshare. Instead, she claims Petitioner has custody of the child